

Conclusion. FANUC's demurrer is sustained without leave to amend with regard to the causes of action for contribution and declaratory relief. FANUC's demurrer is sustained with leave to amend with regard to all other causes of action.

JESSE MORRIS vs. TREVOR BARLETT; ET AL.
Case No. CU23-05798

Motion for Confirmation of Referee's Final Report

TENTATIVE RULING

The unopposed motion is granted.

The court notes that there is a typographical error in the second amended final report purporting to add "\$32,735.00" in rental income offset to Defendant Leland Bartlett's distribution, but the resulting total of \$127,377.63 reflects the correct amount of offset of \$31,937.50.

GABRIEL AFFONSO vs. Z GOLF FOOD & BEVERAGE SERVICES, LLC; ET AL.
Case No. CU25-04349

Petition to Compel Arbitration

TENTATIVE RULING

Defendants' petition to compel arbitration is denied.

The Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act requires "at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver **shall be valid or enforceable with respect to a case** which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. § 402(a), emphasis added.) The term "case" used in the statute means the entire case, not just the sexual assault or sexual harassment claims alleged as part of that case. (*Liu v. Miniso Depot CA, Inc.* (2024) 105 Cal.App.5th 791, 796; *Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 577.) "[T]he plain language of the EFAA exempts a plaintiff's entire case from arbitration where the plaintiff asserts at least one sexual harassment claim subject to the act." (*Liu*, 105 Cal.App.5th at 796.)

The questions of whether or not Plaintiff will be able to represent a class of current and former employees and whether members of this class might be able to avoid arbitration of their wage and hour claims based on Plaintiff's sexual harassment claims are not yet

properly before the court. Prior to class certification, the only plaintiff before the court is Affonso. (*Lee v. S. Cal. Univ. for Prof'l Studies* (2007) 148 Cal.App.4th 782, 786.)

TOM TRAN; ET AL. vs. STEVEN LAM; ET AL.
Case No. CU25-09364

Demurrer

TENTATIVE RULING

The demurrer shall be taken off calendar. The motion has been rendered moot by the timely filing of Plaintiffs' first amended complaint on August 4, 2026.

JORGE MORAN; ET AL. vs. CALIFORNIA AUTOMOBILE INSURANCE COMPANY
Case No. CU25-11802

JORGE MORAN; ET AL. vs. CALIFORNIA AUTOMOBILE INSURANCE COMPANY
Case No. CU25-11868

Motion to Consolidate Related Actions for All Purposes

TENTATIVE RULING

The unopposed motion to consolidate these cases for all purposes is granted. All future filings in either case are to be filed in Case No. cu25-11802, the lead case. The consolidated case is assigned to Judge Tim Kam, Dept. 7 for all purposes.

Parties are to appear for the case management conference scheduled to occur at the same time as the hearing on this consolidation motion.

CAPITAL ONE BANK; ET AL. vs. JULIETTA OWEN
Case No. FCM169564

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement Against Defendant

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].